

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

THE OTHER WOMAN AND THE	:	CASE NO. 24 CV 00498
WIFE, LLC,	:	
	:	(Judge Stacy M. Wall)
Plaintiff and Counterclaim Defendant,	:	
vs.	:	
	:	UNOPPOSED MOTION OF
KRISTEN JACOBS,	:	DEFENDANT AND
	:	COUNTERCLAIM/THIRD-
Defendant and	:	PARTY PLAINTIFF KRISTEN
Counterclaim/Third-Party Plaintiff,	:	JACOBS FOR LEAVE TO FILE
vs.	:	REDACTED PORTIONS OF THE
	:	<u>THIRD-PARTY COMPLAINT</u>
	:	
CHELSEA SMALLWOOD,	:	
	:	
and	:	
	:	
OLIVIA NICODEUMUS,	:	
	:	
Third-Party Defendants.	:	

Pursuant to Local Rule 3.09(D), Sup.R. 45(E), and for good cause shown, Defendant and Counterclaim/Third-Party Plaintiff Kristen Jacobs ("Ms. Jacobs") seeks leave to apply redactions and restrict public access to Ms. Jacobs' Answer and Counterclaim and Third-Party Complaint (filed Dec. 6, 2024) ("Third-Party Complaint") (redacted allegations indicated on Exhibit 2 of this Motion).

As demonstrated in the memorandum in support of this Motion, which is incorporated by reference here, public policy, common law, and Ms. Nicodemus' privacy interests outweigh any public interest in this matter. Therefore, the Court should grant this Motion.

Counsel for The Other Woman and the Wife, LLC and Chelsea Smallwood were consulted prior to filing this Motion and they do not object; counsel for Ms. Nicodemus also consents to this Motion.

A proposed order granting this motion is attached as Exhibit 1.

Respectfully submitted,

/s/ Morgan K. Napier

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Counsel for Defendant Kristen Jacobs

**MEMORANDUM IN SUPPORT OF UNOPPOSED MOTION OF PLAINTIFF AND
COUNTERCLAIM/THIRD PARTY PLAINTIFF KRISTEN JACOBS FOR LEAVE TO
FILE REDACTED PORTIONS OF THE THIRD-PARTY COMPLAINT**

Defendant and Counterclaim/Third-Party Plaintiff Kristen Jacobs ("Ms. Jacobs") moves this Court to permit Ms. Jacobs to redact and restrict public access to certain portions of her December 6, 2024 Answer and Counterclaim and Third-Party Complaint ("Third-Party Complaint"). In the Third-Party Complaint, Ms. Jacobs asserts several allegations relating to actions taken by Ms. Nicodemus during and after her affair with Ms. Jacobs' husband which, pursuant to Sup.R. 45(E) and the parties' written settlement agreement, should be redacted. See, e.g., Third-Party Complaint, ¶¶ 16, 18, 19, 26-32, 71-72, 107.¹

On February 3, 2025, Ms. Nicodemus and Ms. Jacobs reached a settlement agreement. Pursuant to the agreement, Ms. Jacobs agreed to seek leave to withdraw and refile the Third-Party Complaint to address Ms. Nicodemus' concerns about the impact that some of the allegations in the Third Party Complaint may have on her employment and reputation, especially as she is no longer a party to the dispute.² For example, after the Third-Party Complaint was filed, a comment/post was made on the Facebook page of Ms. Nicodemus' Facebook page. This comment/post includes reference to allegations contained in the Third-Party Complaint. A copy of the comment can be provided to the Court upon request.

¹ Nothing in this Motion should be construed as an admission or concession by Ms. Jacobs that any allegation in the Third-Party Complaint is false or that the statements were not first shared on social media or The Other Woman and the Wife LLC's ("TOW") online platform by Ms. Nicodemus, TOW, and/or Ms. Smallwood. Likewise, nothing in this Motion should be construed as an admission or concession on behalf of Ms. Nicodemus.

² Ms. Nicodemus and Ms. Jacobs agreed for the terms of the settlement agreement to remain confidential; counsel for Ms. Nicodemus consented to the disclosures made in this Motion. Ms. Nicodemus and Ms. Jacobs agree to make the settlement agreement available to the Court for an in-camera review if it would assist it in considering this Motion.

As demonstrated below, the interests that the public may have in certain allegations in the Third-Party Complaint are outweighed by public policy, common law, and Ms. Nicodemus' privacy rights.

I. THE COURT SHOULD PERMIT THE THIRD-PARTY COMPLAINT TO BE REFILED WITH REDACTIONS NO GREATER THAN NECESSARY TO PROTECT MS. NICODEMUS' INTERESTS

"[C]ourts have long had inherent authority to seal some or all of the documents in civil cases." State ex rel. Parikh v. Berkowitz, 2024-Ohio-4686, ¶ 39 (1st Dist.) citing Schussheim v. Schussheim, 2013-Ohio-4529, ¶ 16. Sup.R. 45(E) expands this authority (Parikh at ¶ 39) and allows any party to a judicial proceeding to move the court to restrict public access to a case document in whole or in part. Sup.R. 45(E)(1). Courts should restrict public access to a case document if the court finds "by clear and convincing evidence that the presumption of allowing public access is outweighed by a higher interest" Sup.R. 45(E)(2); Local Rule 3.09(D) ("Restricting public access to a case document filed with the Clerk, or submitted to the Court . . . shall proceed as set forth in Superintendence Rule 45(E) and (F)."). When making this determination, courts must consider:

(1) "[w]hether public policy is served by restricting public access";

(2) "[w]hether any state, federal, or common law exempts the document or information from public access"; and

(3) "[w]hether factors that support restriction of public access exist, including risk of injury to persons, individual privacy rights and interests, proprietary business information, public safety, and fairness of the adjudicatory process."

Sup.R. 45(E)(2)(a)-(c). It is not an abuse of the court's discretion to seal documents where "'unusual and exceptional circumstances' exist, and the interests of the applicant outweigh the legitimate interest of the government to maintain the record." Parikh at ¶ 39.

Here, Sup.R. 45(E) factors (and unusual and exceptional circumstances exist that) favor redaction of certain allegations from the Third-Party Complaint. First, public policy favors enforcement of valid contracts entered into "voluntarily and fairly." Gugle v. Loeser, 143 Ohio St. 362, 366-67 (1994). Here, Ms. Nicodemus and Ms. Jacobs voluntarily entered into a valid settlement agreement wherein Ms. Jacobs agreed to seek leave to redact certain allegations in the Third-Party Complaint. This provision is consistent with the spirit of the settlement agreement to protect both women from any further disclosure of the actions and statements that led to the filing of the Third-Party Complaint. Therefore, public policy favors granting this Motion.

Second, state and common law support the minimal redactions proposed by Ms. Jacobs. After all, it is not "uncommon" for records to be sealed as a condition of settlement. Capital One Bank United States, N.A. v. Essex, 2014-Ohio-4247, ¶ 12 (2d Dist.) citing Sobczak, To Seal or Not to Seal? In Search of Standards, 60 Def. Couns. Journal 406 (1993); Bergeron and Eberwine, One Step in the Right Direction: Ohio's Framework for Sealing Criminal Records, 36 U.Tol.L.Rev. 595 (Spring 2005). And, the redactions proposed by Ms. Jacobs (and approved by Ms. Nicodemus) are no greater than necessary to give effect to the spirit of the settlement agreement and to protect Ms. Nicodemus from the harm she seeks to cease through settlement. Sup.R. 45(E)(3)(a) (When public access is restricted, the court should use the least restrictive means, including but not limited to "[r]edacting the information rather than limiting public access to the entire document.").

Finally, factors exist that support the redaction of allegations that Ms. Nicodemus, a nonparty, finds to be harmful and in violation of her individual privacy rights. As demonstrated above, the allegations in the Third-Party Complaint have already resulted in comments that may impact her reputation as a real estate broker and her continued employment in that field. It is Ms. Nicodemus' position that the longer these allegations remain so easily available to the public, the greater the risk to her personal life and professional career.

For these reasons, the Court should grant this Motion and find that the need to redact certain sensitive and personal information about Ms. Nicodemus is greater than the need for such information to be publicly available.

APPROVED BY:

Respectfully submitted,

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Counsel for Defendant and
Counterclaim/Third-Party Plaintiff Kristen
Jacobs

CERTIFICATE OF SERVICE

I certify that on the 24th day of February 2025, the foregoing Unopposed Motion of Defendant and Counterclaim/Third-Party Plaintiff Kristen Jacobs for Leave to File Redacted Portions of the Third-Party Complaint was filed via the Court's eFile system and served via electronic mail pursuant to Civ.R. 5(B)(2)(f) upon the following counsel of record:

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and Third-Party Defendant Chelsea Smallwood

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Counsel for Third-Party Defendant
Olivia Nicodemus

/s/ Morgan K. Napier

Morgan K. Napier

EXHIBIT 1

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

THE OTHER WOMAN AND THE	:	CASE NO. 24 CV 00498
WIFE, LLC,	:	
	:	(Judge Stacy M. Wall)
Plaintiff and Counterclaim Defendant,	:	
vs.	:	
	:	[PROPOSED] ORDER
	:	GRANTING UNOPPOSED
KRISTEN JACOBS,	:	MOTION OF DEFENDANT AND
	:	COUNTERCLAIM/THIRD-
Defendant and	:	PARTY PLAINTIFF KRISTEN
Counterclaim/Third-Party Plaintiff,	:	JACOBS' FOR LEAVE TO FILE
vs.	:	REDACTED PORTIONS OF THE
	:	<u>THIRD-PARTY COMPLAINT</u>
CHELSEA SMALLWOOD,	:	
	:	
and	:	
	:	
OLIVIA NICODEUMUS,	:	
	:	
Third-Party Defendants.	:	

Pursuant to Local Rule 3.09(D), Sup.R.(D), for good cause shown, and for the reasons demonstrated in the Unopposed Motion of Defendant and Counterclaim/Third-Party Plaintiff Kristen Jacobs' for Leave to File Redacted Portions of the Third-Party Complaint ("Motion"), the Motion is GRANTED. The Clerk shall restrict public access to the redacted portions indicated on Exhibit 2 of the Motion.

JUDGE STACY M. WALL

EXHIBIT 2

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

THE OTHER WOMAN AND THE
WIFE, LLC,

Plaintiff and Counterclaim Defendant,

vs.

KRISTEN JACOBS,

Defendant and
Counterclaim/Third-Party Plaintiff,

vs.

CHELSEA SMALLWOOD
228 Montego Ky
Novato, CA 94949

and

OLIVIA NICODEUMUS

Third-Party Defendants.

: CASE NO. 24-498

: (Judge Jeannine N. Pratt)

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**ANSWER AND COUNTERCLAIM
AND THIRD-PARTY
COMPLAINT OF DEFENDANT
KRISTEN JACOBS**

**JURY DEMAND ENDORSED
HEREON**

While Defendant Kristen Jacobs ("Kristen") disputes that this matter is properly
before this Court and asserts that this matter should have been brought in arbitration, as
demonstrated in Kristen's Motion to Compel to Arbitration or Stay Pending Arbitration filed

contemporaneously with this Answer¹, if an Answer is required, then Kristen responds as follows to Plaintiff The Other Woman and the Wife's ("Plaintiff") October 24, 2024 Complaint for Tortious Interference with Contract and Business Relations; with Jury Demand Endorsed Hereon ("Complaint"):

PARTIES, JURISDICTION, AND VENUE²

1. Kristen denies the allegations in Paragraph 1 of the Complaint for lack of knowledge or information sufficient to form a belief as to the truth or falsity of those allegations.
2. Kristen admits the allegations in Paragraph 2 of the Complaint.
3. Kristen admits that Plaintiff operates an "on-line support community" but denies that the community is for "women healing following an experience with infidelity." Kristen denies any remaining allegations in Paragraph 3 of the Complaint.
4. Kristen admits the allegations in Paragraph 4 of the Complaint.
5. Kristen admits that she anonymously joined Plaintiff's online subscription only community, as permitted on Plaintiff's website, and denies all remaining allegations in Paragraph 5 of the Complaint.
6. Kristen denies the allegations in Paragraph 6 of the Complaint.

¹ Kristen makes this Answer and files her Counterclaim and Third-Party Complaint in an abundance of caution and to avoid waiving any rights or claims. The filing of this Answer, Counterclaim, and Third-Party Complaint is not a waiver of Kristen's right to arbitration and should not be construed as consent to litigate this dispute in the Common Pleas Court of Miami County, Ohio.

² Kristen incorporates and restates the headings in the Complaint for purposes of organization only. To the extent that any heading in the Complaint includes any allegations, the allegations are denied.

7. Kristen denies the allegations in Paragraph 7 of the Complaint.

8. Kristen denies the allegations in Paragraph 8 of the Complaint.

9. Kristen admits that she used her credit card to join Plaintiff's online community and denies that she joined the community under false pretenses. Kristen denies all remaining allegations in Paragraph 9 of the Complaint for lack of knowledge or information sufficient to form a belief as to the truth or falsity of those allegations.

10. Kristen denies the allegations in Paragraph 10 of the Complaint for lack of knowledge or information sufficient to form a belief as to the truth or falsity of those allegations.

FIRST CAUSE OF ACTION
(Tortious Interference with Contractual Relations)

11. Kristen incorporates her responses to Paragraphs 1 through 10 of the Complaint as if fully restated.

12. Kristen denies the allegations in Paragraph 12 for lack of knowledge or information sufficient to form a belief as to the truth or falsity of those allegations. Kristen admits that she entered into a contract with Plaintiff when she joined its online community.

13. Kristen admits that she is aware that Plaintiff's online community is fee-based and denies all remaining allegations in Paragraph 13 of the Complaint.

14. Kristen denies the allegations in Paragraph 14 of the Complaint.

15. Kristen denies the allegations in Paragraph 15 of the Complaint.

16. Kristen denies the allegations in Paragraph 16 of the Complaint.

SECOND CAUSE OF ACTION
(Tortious Interference with Business Relations)

17. Kristen incorporates her responses to Paragraphs 1 through 16 of the Complaint as if fully restated.

18. Kristen denies the allegations in Paragraph 18 of the Complaint for lack of knowledge or information sufficient to form a belief as to the truth or falsity of those allegations.

19. Kristen denies the allegations in Paragraph 19 of the Complaint.

20. Kristen denies the allegations in Paragraph 20 of the Complaint.

21. Kristen denies the allegations in paragraph 21 of the Complaint.

22. Kristen denies the allegations in Paragraph 22 of the Complaint.

Kristen denies that Plaintiff is entitled to any of the requested relief and denies any allegations contained in the "WHEREFORE" clause of the Complaint, including all subparts. Kristen further denies any and all allegations that are not specifically admitted.

ADDITIONAL DEFENSES

Without admitting any of the allegations in the Complaint and without admitting or acknowledging that Kristen bears any burden of proof as to any of them, Kristen asserts the following additional defenses. Kristen intends to rely on any additional defenses that become available or apparent during pretrial proceedings and discovery in this action and reserves the right to amend this Answer in order to assert all such further defenses.

FIRST ADDITIONAL DEFENSE

The Complaint fails to state a claim upon which relief can be granted.

SECOND ADDITIONAL DEFENSE

The Court lacks jurisdiction to resolve this dispute because Plaintiff agreed to arbitrate the claims asserted in this matter.

THIRD ADDITIONAL DEFENSE

The Court lacks jurisdiction because Plaintiff agreed that state and federal courts in Kings County, New York have personal and exclusive jurisdiction over any non-arbitrable claims.

FOURTH ADDITIONAL DEFENSE

Plaintiff cannot show that Kristen intentionally interfered with any contract or business relations, or that she lacked justification to do so.

FIFTH ADDITIONAL DEFENSE

Plaintiff's claims are barred by the doctrine of unclean hands and its own bad acts.

SIXTH ADDITIONAL DEFENSE

Plaintiff failed to take reasonable steps to protect itself from damages, if any, and failed to mitigate any such damages.

SEVENTH ADDITIONAL DEFENSE

Plaintiff's Complaint fails because the alleged damages incurred or suffered by Plaintiff, in whole or in part, were not proximately caused by any act or omission or failure of Kristen. Plaintiff's damages are caused by individuals other than Kristen.

EIGHTH ADDITIONAL DEFENSE

Plaintiff has not suffered any injury or damage as a result of any conduct of Kristen.

NINTH ADDITIONAL DEFENSE

To the extent that Plaintiff is injured, Plaintiff's injuries are not foreseeable or were the result of an intervening or superseding cause.

TENTH ADDITIONAL DEFENSE

Any statements made by Kristen relating to Plaintiff are truthful.

ELEVENTH ADDITIONAL DEFENSE

Plaintiff engaged in spoliation.

TWELFTH ADDITIONAL DEFENSE

The injuries and damages alleged in the Complaint, if any, are the direct and proximate result of acts and omissions of Plaintiff and its agents, officers, and/or employees.

THIRTEENTH ADDITIONAL DEFENSE

Plaintiff's Complaint is barred, in whole or in part, because Plaintiff's damages, if any, were caused by independent, intervening, and/or superseding acts, errors, omissions, and causes which Kristen had no control and for which Kristen is not liable.

FOURTEENTH ADDITIONAL DEFENSE

Plaintiff's claims are barred, in whole or in part, by the doctrines of waiver, estoppel, and laches.

FIFTEENTH ADDITIONAL DEFENSE

Plaintiff's request for punitive damages is barred by Ohio law.

SIXTEENTH ADDITIONAL DEFENSE

Kristen specifically reserves the right to assert any and all affirmative defenses under Civ.R. 8 and any other defenses, in law or equity, that may not exist or that may become available through information in discovery, at trial, or otherwise.

PRAYER FOR RELIEF

WHEREFORE, Kristen denies that she is liable to Plaintiff for any of the request for relief set forth in the "WHEREFORE" claims of the Complaint, including all subparts. Kristen requests that this Court:

1. Compel this dispute to arbitration, or in the alternative, a state or federal court in Kings County, New York;
2. Find that Plaintiff take nothing on its claims against Kristen, including a finding that Plaintiff is not entitled to punitive damages;
3. Dismiss Plaintiff's Complaint with prejudice and deny Plaintiff any and all relief requested in the Complaint;
4. Enter judgment in favor of Kristen; and
5. Award Kristen her reasonable attorneys' fees, costs, and any other relief, legal or equitable, that this Court deems appropriate.

KRISTEN JACOBS' COUNTERCLAIMS AND THIRD-PARTY COMPLAINT

This action arises from the malicious and unseemly conduct of Defendant The Other Woman and the Wife, LLC ("TOW"), its owner and founder Chelsea Smallwood ("Chelsea"), and its agent and employee Olivia Nicodemus ("Olivia"). Defendant TOW and Third-Party Defendants Chelsea and Olivia (collectively, "Defendants") have engaged in a campaign to harass, embarrass, and cause extreme mental distress to Plaintiff Kristen Jacobs ("Kristen"). Instead of acknowledging that Kristen is the victim of Olivia's affair with Kristen's husband, Defendants seek to further victimize Kristen by violating her privacy and publicly posting intimate details of the affair on social media platforms, such as TikTok, YouTube, and Instagram, in order to increase membership of TOW and otherwise profit from Defendants bad acts. Defendants should not be permitted to further victimize and profit off of Kristen's trauma.

PARTIES AND JURISDICTION

1. Plaintiff Kristen is an individual residing at 6230 Tipp Elizabeth Road, Troy, Ohio 45373.
2. Defendant TOW is a California limited liability company whose principal place of business is 228 Montego Ky, Novato, California 94949.
3. Third-Party Defendant Chelsea is an individual residing at 228 Montego Ky, Novato, California 94949. Chelsea is the founder and owner of TOW.
4. Third-Party Defendant Olivia is an individual residing at [REDACTED]
[REDACTED] Olivia is an employee of TOW.

BACKGROUND

5. Defendant TOW is an online, subscription-based community whose purpose is to "support women in their healing journey after infidelity," specifically, the "other woman."

6. In the fall of 2023, TOW made no effort to interview or screen members. Upon payment of a subscription fee, anyone could become a member of TOW. Members were also permitted to join anonymously.

7. TOW utilizes two subscription levels, the "Community Subscription" for \$78 per quarter, and the "Premium Subscription" for \$98 per quarter.

8. In September 2023, Kristen joined the TOW's Community Subscription. She agreed to be bound by the "OW Terms of Service" ("Contract Terms"), a copy of which is attached as Exhibit 1.

9. Defendant TOW's Contract Terms (pp. 1-2) require arbitration of any dispute arising from the use of TOW:

"ARBITRATION NOTICE. Except for certain kinds of disputes described in Section 15 (*Dispute Resolution and Arbitration*), you agree that disputes arising under these Terms will be resolved by binding, individual arbitration, and BY ACCEPTING THESE TERMS, YOU AND COMMUNITY OWNER ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN ANY CLASS ACTION OR REPRESENTATIVE PROCEEDING."

10. In addition, Section 15.1 requires:

"Except as described in Section 15.2 (Exceptions) and 15.3 (Opt-Out), you and Community Owner agree that every dispute arising in connection with these Terms, the Community, or communications from us will be resolved through binding

arbitration. Arbitration uses a neutral arbitrator instead of a judge or jury, is less formal than a court proceeding, may allow for more limited discovery than in court, and is subject to very limited review by courts. This agreement to arbitrate disputes includes all claims whether based in contract, tort, statute, fraud, misrepresentation, or other legal theory, and regardless of whether a claim arises during or after the termination of these Terms. Any dispute relating to the interpretation, applicability, or enforceability of this binding arbitration agreement will be resolved by the arbitrator. YOU UNDERSTAND AGREE THAT, BY ENTERING INTO THESE TERMS YOU AND COMMUNITY OWNER ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN A CLASS ACTION."

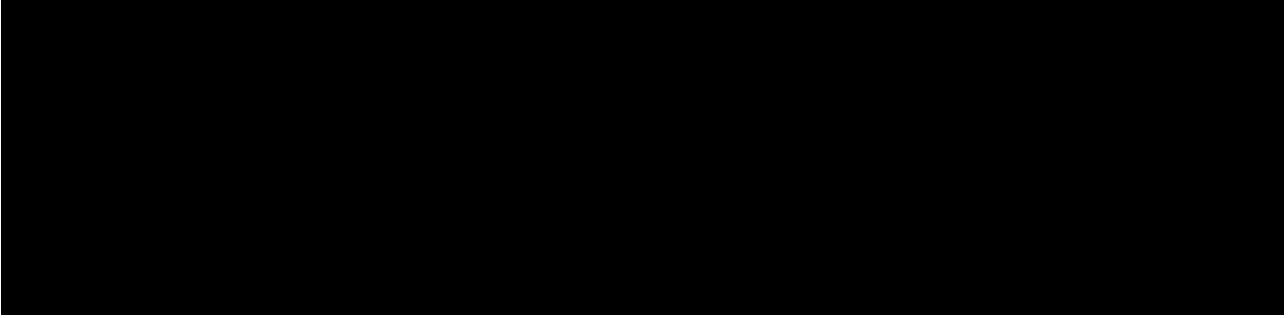
11. Defendant TOW's Contract Terms further provide that the arbitration is to be administered by JAMS (§ 15.4), and that prior to doing so, a "Notice of Arbitration" will be provided to the offending party and include (1) the name of the account or account number of the complaining party; (2) a description of the nature and basis of the claim; and (3) a specific demand for relief (§ 15.5). Defendant TOW is required to make a good faith effort to try to resolve the claim and may only bring a matter in arbitration if a resolution cannot be resolved within 30 days after the Notice of Arbitration (id.).

12. The arbitration provision applies after the termination of any subscription. Contract Terms, § 15.1.

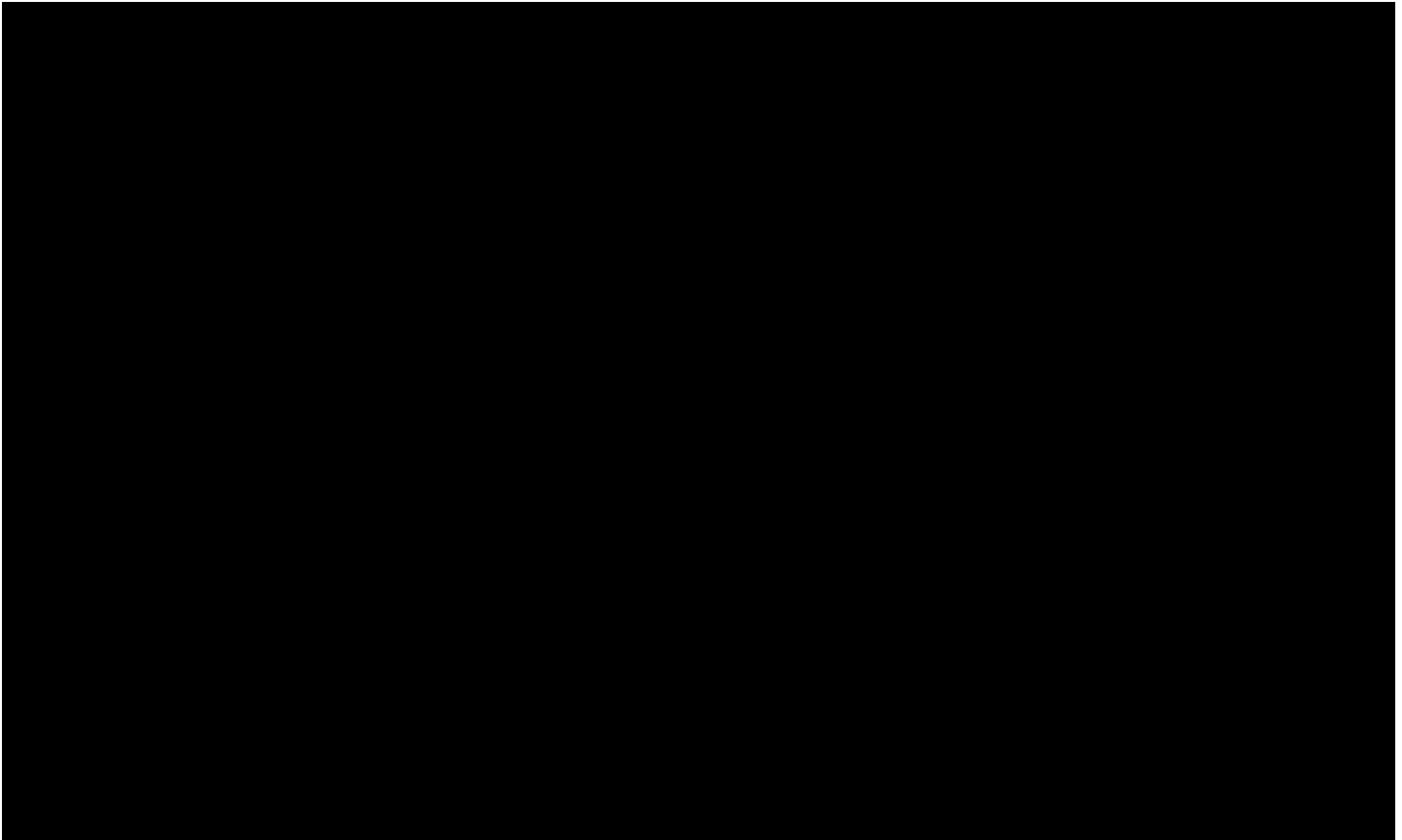
13. Defendant TOW has ignored the arbitration provision by, among other things, filing this lawsuit and failing to engage in any good faith efforts with Kristen prior to filing suit in Miami County.

14. The arbitration provision governs and controls this dispute.

15. Kristen, through her counsel, contacted TOW's counsel to have this matter transferred to arbitration but was unsuccessful in her efforts.



17. Around the same time, Kristen began to see a therapist for counseling on her concerns about an extramarital affair.



20. On or about September 11, 2023, Kristen discovered a video on TikTok that was created by Chelsea and disclosed intimate details of the affair. Specifically, Chelsea

read a text conversation between Kristen and Olivia, and depicted Kristen—the victim of the affair—in a negative or false light.

21. Kristen considered the affair to be a private and personal matter, and the affair was not publicly known.

22. After viewing the video, Kristen soon learned of Defendant TOW's private online community for women "affected" by infidelity.

23. Kristen joined the TOW's private community anonymously. In doing so, she relied on the TOW's Frequently Asked Questions section which provides for anonymity by allowing members to join without use of their real name, while paying the subscription fee with their actual name and credit card information.

24. When joining TOW's online community, its members (Kristen and Olivia) agreed that the following conduct is prohibited:

"PROHIBITED CONDUCT. BY USING THE COMMUNITY, YOU AGREE NOT TO:

8.1 use the Community for any illegal purpose or in violation of any local, state, national, or international law;

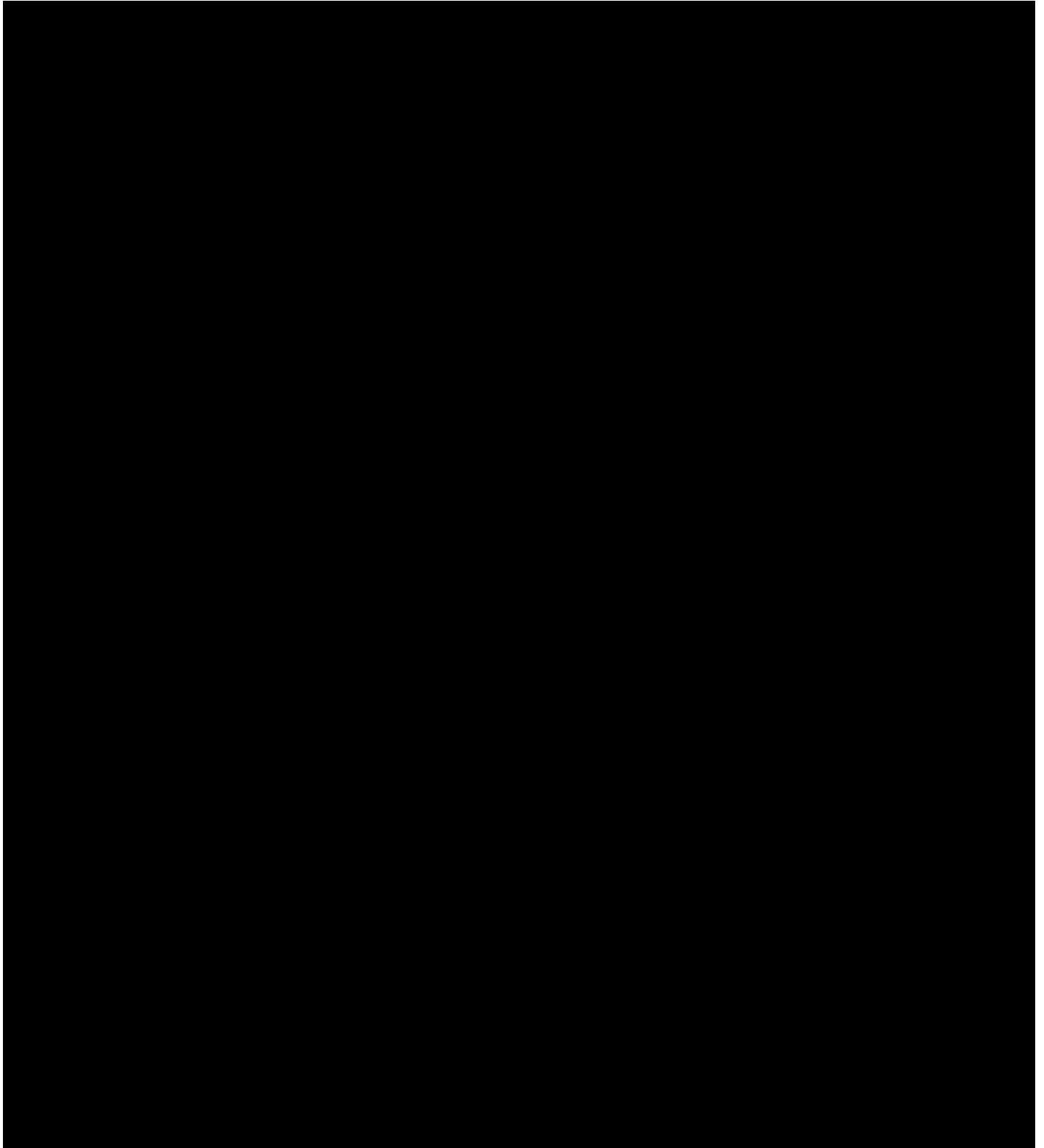
8.2 harass, threaten, demean, embarrass, bully, or otherwise harm any other user of the Community;

. . . .

8.9 attempt to do any of the acts described in this Section 8 (*Prohibited Conduct*) or assist or permit any person in engaging in any of the acts described in this Section 8."

25. Defendant TOW promised (§ 6.4) to "investigate" any allegation by a user of TOW that another user is in violation of the Contract Terms.

26. Immediately upon joining the TOW's private community, Kristen learned



**TOW AND CHELSEA PROFIT FROM SHARING KRISTEN'S
PRIVATE INFORMATION**

33. Instead of monitoring and enforcing their policies protecting the privacy rights of others, TOW and Chelsea pursued a plan to profit from Kristen's private pain and suffering.

34. Since at least September 2023, Chelsea used text messages and other private information shared by Olivia through TOW, and she created content for TOW's social media platforms.

35. Chelsea made at least a dozen videos, and she also published comments in the social media chat features, disclosing the personal and intimate information shared by Olivia. These videos were posted on social medial websites such as TikTok, YouTube, and Instagram.

36. Chelsea also made statements about Kristen that are blatantly false in an effort to disparage Kristen, such as falsely accusing Kristen of having a sexually transmitted disease; as being a participant in a "throuple"; that she invited the "other woman" in to her bedroom; Kristen bullied or harassed members of Chelsea's community [REDACTED]; and Kristen doxed or created fake social media accounts to harass Chelsea or members of TOW's community.

37. Chelsea did not make any effort to protect Kristen's or her family's identity. Indeed, members of Chelsea's community refer to Kristen in comments on content related and unrelated to content that Chelsea created about Olivia's affair with Kristen's husband.

38. Chelsea's videos and posts were seen by members of Kristen's community.

39. Upon information and belief, TOW profits from engagement on its social media pages. Stated differently, TOW used Kristen's trauma as clickbait to encourage interaction with TOW's TikTok, YouTube, and Instagram pages.

40. Chelsea made these posts maliciously and with reckless disregard of the privacy rights of Kristen.

41. As a result of Defendants' relentless campaign to harass and threaten Kristen on social media, Kristen continued to receive treatment for the severe emotional and mental distressed caused by Defendants' malicious acts.

TOW AND CHELSEA THREATEN KRISTEN

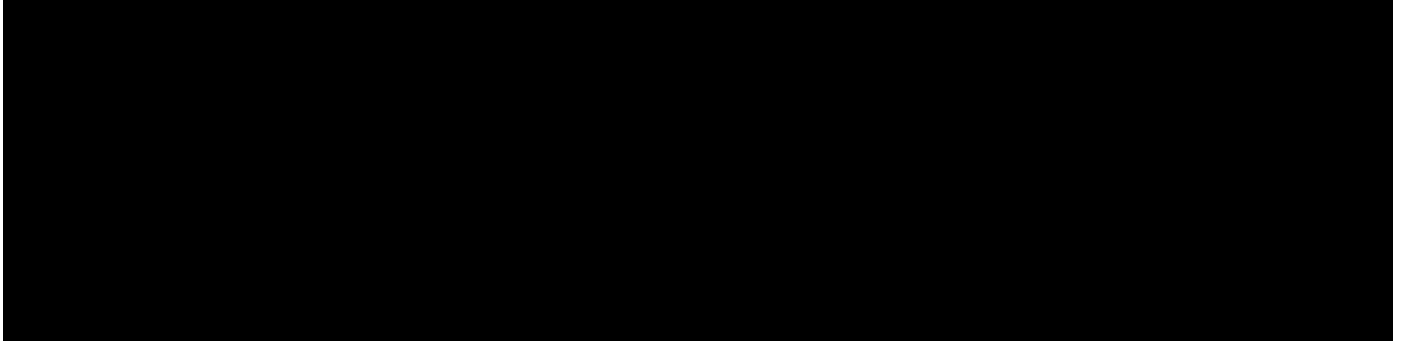
42. Incredibly, in November 2023, Chelsea sent an email accusing Kristen of engaging in "harassing" behavior and threatening legal action if she did not cease such actions. In another email Kristen was falsely accused of misappropriating TOW's intellectual property.

43. Through TOW's social media pages, Chelsea falsely accused Kristen of bullying, doxing, releasing information about members of TOW, and creating fake accounts to harass members of TOW's community.

44. In addition, Chelsea sent Kristen's therapist a letter containing the same false and disparaging information about Kristen in an effort to interfere with the medical

treatment and counseling Kristen sought in response to Defendants' harassment and online bullying.

45. In response to Chelsea's threats, Kristen requested that information identifying herself and her family be removed from TOW's community and social media.



48. Instead, Chelsea and TOW continued their malicious conduct with utter disregard for Kristen's privacy and mental condition.

49. For example, in January 2024, Chelsea made a video bragging of contacting Kristen's therapist (and provided one of her followers with the therapist's contact information) and accused Kristen of creating fake accounts to "harass" Chelsea.

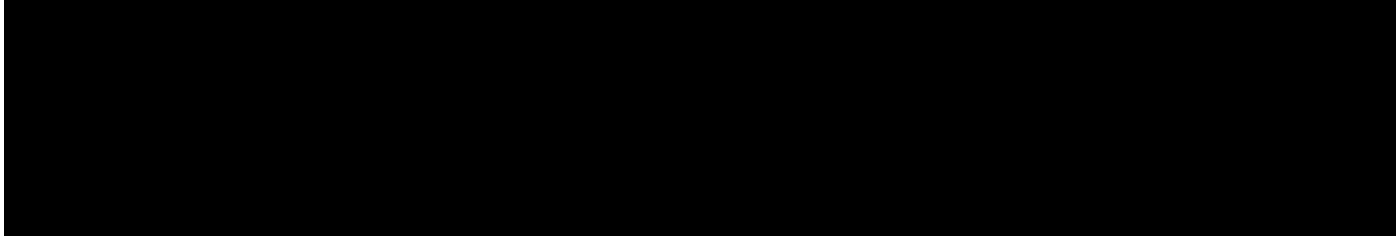
50. As a result of Chelsea and TOW's social media posts, Kristen has received threatening messages from Chelsea's community and has since had to remove the "comment" feature from her social media pages and make her social media pages private.

51. As a direct and proximate result of Defendants' malicious bullying, harassment, and false representations, Kristen experiences mental and physical suffering, as well as harm to her reputation.

FIRST CAUSE OF ACTION FOR BREACH OF THE CONTRACT TERMS BY TOW

52. Kristen incorporates Paragraphs 1 to 51 as if restated here.

53. Kristen joined TOW's online community by paying the subscription fee, and Kristen complied with all of the conditions associated with the Contract Terms.



55. Despite informing Chelsea of the harassing and inappropriate content on TOW's community, Chelsea refused to investigate and take any action to remediate the behavior.

56. As a direct and proximate result of TOW's actions, Kristen is harmed and entitled to recover compensatory damages for TOW's actions.

**SECOND CAUSE OF ACTION FOR INVASION OF PRIVACY (FALSE LIGHT)
AGAINST DEFENDANTS**

57. Kristen incorporates Paragraphs 1 to 56 as if restated here.

58. Despite knowing that Kristen was the victim of an affair, Defendants depict Kristen in a false and negative light on TOW's online community and their social media pages.

59. Defendants make such false depictions in order to generate "clickbait" to gain membership and social media followers for TOW's online community.

60. Defendants' false depiction of Kristen is offensive to a reasonable person.

61. Defendants' actions are done maliciously, knowingly and with reckless disregard that they are falsely depicting Kristen.

62. As a direct and proximate result, Kristen is damaged.

THIRD CAUSE OF ACTION FOR DEFAMATION AGAINST DEFENDANTS

63. Kristen incorporates Paragraphs 1 to 62 as if restated here.

64. Defendants use social media and TOW community to make false and defamatory statements about Kristen, including but not limited to statements relating to Kristen's marriage and that Kristen is doxing or engaging in behavior online to harass or expose members of the TOW's community.

65. Defendants post the false and harmful statements on social media and/or TOW community without Kristen's consent.

66. Defendants continue to post the false and harmful statements knowing that they are harmful to Kristen's reputation and expose her to public shame and ridicule.

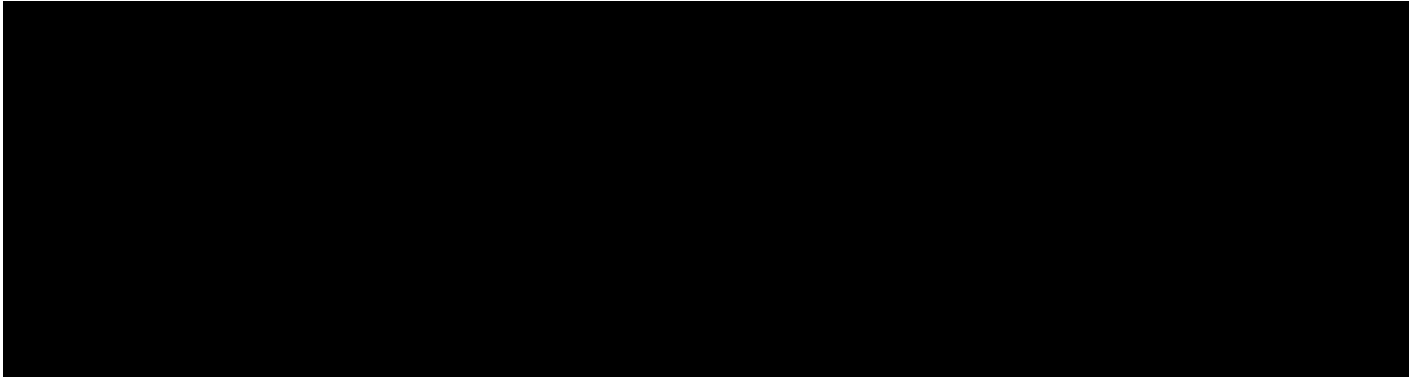
67. Defendants continue to post false and harmful statements about Kristen knowing that the statements are false and with disregard that the statements are false.

68. Defendants' false statements are made with actual malice.

69. As a direct and proximate cause of Defendants' actions, Kristen is harmed and entitled to compensatory, damages, including but not limited to harm to Kristen's reputation, mental anguish and suffering, and the humiliation caused by Defendants' actions, special damages, and/or nominal damages, exemplary and/or punitive damages.

**FOURTH CAUSE OF ACTION FOR INTRUSION OF PRIVACY AGAINST
DEFENDANTS**

70. Kristen incorporates Paragraphs 1 to 69 as if restated here.



73. Defendant TOW and Third-Party Defendant Chelsea also published those intimate details on their social media pages.

74. Defendants also intruded upon Kristen's marriage, which she is entitled to privacy.

75. Defendants did not take any actions to protect the identity of Kristen.

76. Defendants' instructions are highly offensive to a reasonable person.

77. Defendants' actions were done with the intent to shame and humiliate Kristen.

78. As a direct and proximate result, Kristen is harmed.

**FIFTH CAUSE OF ACTION FOR INVASION OF PRIVACY FOR PUBLICATION
PRIVATE FACTS AGAINST DEFENDANTS**

79. Kristen incorporates Paragraphs 1 to 78 as if restated here.

80. Defendants violated Kristen's right to privacy in her marriage and home by disclosing intimate and private facts about Kristen's marriage on social media and TOW's online community page.

81. Defendants' disclosure of intimate details of Kristen's marriage is highly offensive to a reasonable person.

82. Defendants intentionally disclosed such information.

83. Details about Kristen's marriage, including Olivia's affair, are not legitimate concerns of the public, nor were they publicly known prior to Defendants' disclosures.

84. As a direct and proximate result, Kristen has been damaged in an amount to be determined by the Court.

SIXTH CAUSE OF ACTION FOR LIBEL AGAINST DEFENDANTS

85. Kristen incorporates Paragraphs 1 to 84 as if restated here.

86. Defendants used social media to make written false and defamatory comments about Kristen.

87. No privilege exists that permits Defendants to make such false and defamatory statements.

88. Defendants knowingly and maliciously published the false and defamatory statements about Kristen.

89. As a direct and proximate cause of Defendants' actions, Kristen is harmed and entitled to compensatory damages, including but not limited to harm to Kristen's reputation,

mental anguish and suffering, and the humiliation caused by Defendants' actions, special damages, and/or nominal damages, exemplary and/or punitive damages.

SEVENTH CAUSE OF ACTION FOR SLANDER AGAINST DEFENDANTS

90. Kristen incorporates Paragraphs 1 to 89 as if restated here.

91. Defendants, through "reels" or videos on social media spread false and defamatory statements about Kristen on social media.

92. No privilege exists that permits Defendants to make such false and defamatory statements.

93. Defendants knowingly and with actual malice published the false and defamatory statements about Kristen.

94. As a direct and proximate cause of Defendants' actions, Kristen is harmed and entitled to compensatory, damages, including but not limited to harm to Kristen's reputation, mental anguish and suffering, and the humiliation caused by Defendants' actions, special damages, and/or nominal damages, exemplary and/or punitive damages.

EIGHTH CAUSE OF ACTION FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS AGAINST DEFENDANTS

95. Kristen incorporates Paragraphs 1 to 94 as if restated here.

96. Defendants knew or should have known that by continuously posting intimate details about Kristen's marriage, intimate details of Olivia's affair, and contacting Kristen's medical provider, Kristen would suffer from serious emotional distress.

97. Defendants' actions are extreme and outrageous and go beyond all bounds of decency and not tolerated in a civilized society.

98. As a direct and proximate result of Defendants' actions, Kristen suffered psychic injury that is so serious in nature no reasonable person should be expected to endure.

**NINTH CAUSE OF ACTION FOR CIVIL CLAIM FOR TELECOMMUNICATIONS
HARASSMENT AGAINST DEFENDANTS (R.C. 2307.60 & R.C. 2917.12(B)(2))**

99. Kristen incorporates Paragraphs 1 to 98 as if restated here.

100. R.C. 2307.60 permits an individual to recover civilly for harm caused by another's criminal actions.

101. R.C. 2917.12(B)(2) imposes criminal liability on an individual who knowingly makes a post on the internet that is made for the purpose of abusing, threatening, or harassing another.

102. Violation of R.C. 2917.12 is a first-degree misdemeanor for a first offense and a fifth-degree felony on subsequent offenses. R.C. 2917.12(C)(2).

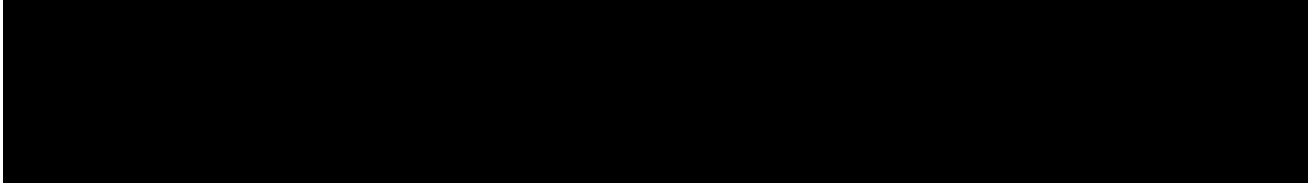
103. For over a year, Defendants knowingly posted abusing, threatening, and/or harassing videos about Kristen on the internet through TOW's community and their social media accounts.

104. As a direct and proximate result of Defendants' actions, Kristen is harmed and entitled to damages, including costs and fees incurred in this dispute as well as injunctive relief.

**TENTH CAUSE OF ACTION FOR
TORTIOUS INTERFERENCE WITH CONTRACT AGAINST DEFENDANTS**

105. Kristen incorporates Paragraphs 1 to 104 as if restated here.

106. Defendants knew that Kristen was receiving professional services from a licensed therapist and the identity of that therapist.



108. Defendant TOW and Third-Party Defendant Chelsea contacted Kristen's therapist with false information in order to interfere with Kristen's treatment.

109. As a direct and proximate result of Defendants' actions, Kristen is harmed and entitled to damages, including costs and fees incurred in this dispute as well as injunctive relief.

WHEREFORE, Kristen demands that this Court find that Kristen is entitled to:

1. Compensatory damages, special damages, nominal damages, and/or exemplary damages;
2. Injunctive relief;
3. Pre- and post-judgment interest;
4. Punitive damages;
5. Costs and reasonable attorneys' fees; and
6. Such other and further relief as this Court deems appropriate.

Respectfully submitted,

/s/ Morgan K. Napier

Morgan K. Napier (0099190)

D. Jeffrey Ireland (0010443)

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Fax: (937) 227-3717

Email: mnapier@ficlaw.com

djireland@ficlaw.com

Attorneys for Defendant Kristen Jacobs

JURY DEMAND

Kristen demands trial by jury of all issues contained herein.

/s/ Morgan K. Napier

CERTIFICATE OF SERVICE

I certify that on the 6th day of December 2024, the foregoing Answer and Counterclaim and Third-Party Complaint of Defendant Kristen Jacobs was served via electronic mail pursuant to Civ.R. 5(B)(2)(f) upon the following counsel of record:

Michael W. Sandner, Esq.
PICKREL, SCHAEFFER & EBELING CO.
2700 Stratacache Tower
Dayton, OH 45423
msandner@pselaw.com

Counsel for Plaintiff
The Other Woman and the Wife, LLC

and certified mail service by clerk was requested for the following:

Chelsea Smallwood
228 Montego Ky
Novato, CA 94949

Third-Party Defendant

Olivia Nicodeumus



Third-Party Defendant

/s/ Morgan K. Napier
Morgan K. Napier

EXHIBIT 1



OW Terms of Service

Last Updated: August 12, 2024

Welcome, and thank you for your interest in OW ("**Community Owner**," "**we**," or "**us**") and our online community, along with any mobile or other downloadable applications that we make available to enable access to the same (collectively, the "**Community**"). These Terms of Service are a legally binding contract between you and Community Owner regarding your use of the Community.

PLEASE READ THE FOLLOWING TERMS CAREFULLY.

BY ACCEPTING THESE TERMS, EITHER BY CLICKING "I ACCEPT" OR BY OTHERWISE ACCESSING OR USING THE COMMUNITY, YOU AGREE THAT YOU HAVE READ AND UNDERSTOOD, AND, AS A CONDITION TO YOUR USE OF AND ACCESS TO THE COMMUNITY, YOU AGREE TO BE BOUND BY, THE FOLLOWING TERMS AND CONDITIONS, INCLUDING [COMMUNITY OWNER'S PRIVACY POLICY](#) (COLLECTIVELY, THESE "**TERMS**") EITHER (A) ON BEHALF OF YOURSELF AS AN INDIVIDUAL, OR (B) IF YOU ARE ACCESSING THE COMMUNITY ON BEHALF OF AN ENTITY, ORGANIZATION, OR COMMUNITY OWNER, ON BEHALF OF SUCH ENTITY, ORGANIZATION OR COMMUNITY OWNER FOR WHICH YOU ACT, AND YOU REPRESENT THAT YOU HAVE THE AUTHORITY TO BIND SUCH ENTITY, ORGANIZATION OR COMMUNITY OWNER TO THIS AGREEMENT. IF YOU ARE NOT ELIGIBLE, OR DO NOT AGREE TO THE TERMS, THEN YOU DO NOT HAVE OUR PERMISSION TO USE THE COMMUNITY. YOUR USE OF THE COMMUNITY, AND COMMUNITY OWNER'S PROVISION OF THE COMMUNITY TO YOU, CONSTITUTES AN AGREEMENT BY COMMUNITY OWNER AND BY YOU TO BE BOUND BY THESE TERMS.

ARBITRATION NOTICE. Except for certain kinds of disputes described in Section 15 (*Dispute Resolution and Arbitration*), you agree that disputes arising under these Terms

will be resolved by binding, individual arbitration, and BY ACCEPTING THESE TERMS, YOU AND COMMUNITY OWNER ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN ANY CLASS ACTION OR REPRESENTATIVE PROCEEDING.

1. **Eligibility.** You must be at least 18 years old to join the Community. By agreeing to these Terms, you represent and warrant to us that: (a) you are at least 18 years old; (b) you have not previously been suspended or removed from the Community; and (c) your registration and your use of the Community is in compliance with any and all applicable laws and regulations.
2. **Accounts and Registration.** To access most features of the Community, you must register for an account. When you register for an account, you may be required to provide us with some information about yourself, such as your name, email address, or other contact information. You agree that the information you provide to us is accurate, complete, and not misleading, and that you will keep it accurate and up to date at all times. When you register, you will be asked to create a password. You are solely responsible for maintaining the confidentiality of your account and password, and you accept responsibility for all activities that occur under your account. If you believe that your account is no longer secure, then you should immediately notify us at community@theotherwomanandthewife.com or by using the mechanisms made available by Community Owner.

3. LICENSES

- 3.1. **Limited License.** Subject to your complete and ongoing compliance with these Terms, Community Owner grants you, solely for your personal, non-commercial use, a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to: (a) install and use any mobile or other downloadable application provided to you by Community Owner and associated with the Community on a mobile device that you own or control; and (b) access and use the Community.
- 3.2. **License Restrictions.** Except and solely to the extent such a restriction is impermissible under applicable law, you may not: (a) reproduce, distribute, publicly display, publicly perform, or create derivative works of the software powering the Community; (b) make modifications to the software powering the Community; or (c) interfere with or circumvent any feature of the Community, including any security or access control mechanism. If you are prohibited under applicable law from using the Community, then you may not use it.
- 3.3. **Feedback.** We respect and appreciate the thoughts and comments from our users. If you choose to provide input and suggestions regarding existing functionalities, problems with or proposed modifications or improvements to the Community ("**Submissions**"), then you hereby grant Community Owner and its Service Provider (defined in Section 16.1 below) an unrestricted, perpetual, irrevocable, non-exclusive, fully-paid, royalty-free right and license to exploit the Submissions in any manner and for any purpose, including to improve the Community and create other products and services. We will have no obligation to provide you with attribution for any Submissions you provide to us.

4. **Ownership; Proprietary Rights.** The Community is managed by Community Owner using a platform made available by Service Provider. The visual interfaces, graphics, design, compilation, information, data, computer code (including source code or object code), products, software, services, and all other elements of the Community provided by Community Owner or Service Provider ("**Materials**") are protected by intellectual property and other laws. All Materials included in the Community are the property of Community Owner or its third-party licensors (including Service Provider). Except as expressly authorized by Community Owner, you may not make use of the Materials. There are no implied licenses in these Terms and Community Owner and Service Provider reserve all rights to the Materials not granted expressly in these Terms.

5. THIRD-PARTY TERMS

5.1. **Third-Party Services.** Community Owner may provide tools through the Community that enable integration with third-party platforms, add-ons, services, or products not provided by Community Owner ("**Third-Party Services**"). If you direct us to transmit data to, or receive data from, a Third-Party Service on your behalf (including by enabling the applicable integration in the settings of the Community), then you authorize us and Service Provider to collect, access, use, derive, disclose, generate, transfer, transmit, store, host, or otherwise process ("**Process**") any such data, including User Content (defined in 6.1 below), in connection with the applicable integration, in a manner consistent with the functionality of the Community requested by you and the permissions granted to Community Owner by the relevant integration (which Processing may include, without limitation, performing queries on the data held by the Third-Party Service). You acknowledge and agree that your use of a Third-Party Service is subject to your agreement with the relevant provider of such Third-Party Service, and that Community Owner and Service Provider are not a party to such agreement. Community Owner and Service Provider do not control and have no liability for Third-Party Services, including their security, functionality, operation, availability, or interoperability with the Community or how the Third-Party Services or their providers use User Content. All data received from Third-Party Services on behalf of you as described herein will be deemed User Content under these Terms.

5.2. **Third-Party Software.** The Community may include or incorporate third-party software components that are generally available free of charge under licenses granting recipients broad rights to copy, modify, and distribute those components ("**Third-Party Components**"). Although the Community is provided to you subject to these Terms, nothing in these Terms prevents, restricts, or is intended to prevent or restrict you from obtaining Third-Party Components under the applicable third-party licenses or to limit your use of Third-Party Components under those third-party licenses.

6. USER CONDUCT

- 6.1. **User Content Generally.** Certain features of the Community may permit users to submit, upload, publish, broadcast, or otherwise transmit ("**Post**") content to the Community, including messages, reviews, photos, video or audio (including sound or voice recordings and musical recordings embodied in the video or audio), images, folders, data, text, and any other works of authorship or other works ("**User Content**"). You retain any copyright and other proprietary rights that you may hold in the User Content that you Post to the Community, subject to the licenses granted in these Terms.
- 6.2. **Limited License Grant to Community Owner.** By Posting User Content to or via the Community, you grant Community Owner and Service Provider a worldwide, non-exclusive, royalty-free, fully paid right and license (with the right to sublicense through multiple tiers) to host, store, transfer, publicly display, publicly perform (including by means of a digital audio transmission), communicate to the public, reproduce, modify for the purpose of formatting for display, create derivative works as authorized in these Terms, and distribute your User Content, in whole or in part, in any media formats and through any media channels, in each instance whether now known or hereafter developed. All of the rights you grant in these Terms are provided on a through-to-the-audience basis, meaning the owners or operators of external services will not have any separate liability to you or any other third party for User Content Posted or otherwise used on external services via the Community. You agree to pay all monies owing to any person or entity resulting from Posting your User Content and from Community Owner's or Service Provider's exercise of the license set forth in this Section.
- 6.3. **You Must Have Rights to the Content You Post; User Content Representations and Warranties.** You must not Post User Content if you are not the owner of or are not fully authorized to grant rights in all of the elements of that User Content including in all ambient music and underlying musical works embodied in any sound recording. Community Owner disclaims any and all liability in connection with User Content. You are solely responsible for your User Content and the consequences of providing User

Content via the Community. By providing User Content via the Community, you affirm, represent, and warrant to us that:

- (a) you are the Community Owner and owner of the User Content, or have the necessary licenses, rights, consents, and permissions to authorize Community Owner and users of the Community to use and distribute your User Content as necessary to exercise the licenses granted by you in this Section, in the manner contemplated by Community Owner, Service Provider, the Community, and these Terms;
- (b) your User Content, and the Posting or other use of your User Content as contemplated by these Terms, does not and will not: (i) infringe, violate, misappropriate, or otherwise breach any third-party right, including any copyright, trademark, patent, trade secret, moral right, privacy right, right of publicity, or any other intellectual property, contract, or proprietary right; (ii) slander, defame, libel, or invade the right of privacy, publicity or other property rights of any other person; or (iii) cause Community Owner or Service Provider to violate any law or regulation or require Community Owner or Service Provider to obtain any further licenses from or pay any royalties, fees, compensation or other amounts or provide any attribution to any third parties; and
- (c) your User Content could not be deemed by a reasonable person to be objectionable, profane, indecent, pornographic, harassing, threatening, embarrassing, hateful, or otherwise inappropriate.

6.4. User Content Disclaimer. Community Owner and Service Provider are under no obligation to edit or control User Content that you or other users Post and will not be in any way responsible or liable for User Content. Community Owner or Service Provider may, however, at any time and without prior notice, screen, remove, edit, or block any User Content that in our sole judgment violates these Terms, is alleged to violate the rights of third parties, or is otherwise objectionable. You understand that, when using the Community, you will be exposed to User Content from a variety of

sources and acknowledge that User Content may be inaccurate, offensive, indecent, or objectionable. You agree to waive, and do waive, any legal or equitable right or remedy you have or may have against Community Owner or Service Provider with respect to User Content. If notified by a user or content owner that User Content allegedly does not conform to these Terms, Community Owner may (or may permit Service Provider to) investigate the allegation and determine whether to remove the User Content, which Community Owner and Service Provider reserve the right to do at any time, without notice, and for any reason. For clarity, Community Owner does not permit infringing activities on the Community.

- 6.5. **Monitoring Content.** Community Owner and Service Provider do not control and do not have any obligation to monitor: (a) User Content; (b) any content made available by third parties; or (c) the use of the Community by its users. You acknowledge and agree that Community Owner and Service Provider reserve the right to, and may from time to time, monitor any and all information transmitted or received through the Community for operational and other purposes. If at any time Community Owner or Service Provider choose to monitor the content, then Community Owner and Service Provider still assume no responsibility or liability for content or any loss or damage incurred as a result of the use of content. During monitoring, information may be examined, recorded, copied, and used in accordance with [Community Owner's Privacy Policy](#). Community Owner and Service Provider may block, filter, mute, remove or disable access to any User Content uploaded to or transmitted through the Community without any liability to the user who Posted such User Content to the Community or to any other users of the Community.

7. COMMUNICATIONS

- 7.1. **Push Notifications.** When you install our app on your mobile device, you agree to receive push notifications, which are messages an app sends you on your mobile device when you are not in the app. You can turn off notifications by visiting your mobile device's "settings" page.
- 7.2. **In-App Notifications.** When you install our app on your mobile device, we may send you in-app notifications. You can turn off notifications in the app's "settings" page.
- 7.3. **Email.** We may send you emails concerning our products and services, as well as those of third parties. You may opt out of promotional emails by following the unsubscribe instructions in the promotional email itself. Even if you opt out of receiving promotional messages from us, you will continue to receive administrative messages from us.

8. PROHIBITED CONDUCT. BY USING THE COMMUNITY, YOU AGREE NOT TO:

- 8.1 use the Community for any illegal purpose or in violation of any local, state, national, or international law;
- 8.2 harass, threaten, demean, embarrass, bully, or otherwise harm any other user of the Community;
- 8.3 violate, encourage others to violate, or provide instructions on how to violate, any right of a third party, including by infringing or misappropriating any third-party intellectual property right;
- 8.4 access, search, or otherwise use any portion of the Community through the use of any engine, software, tool, agent, device, or mechanism (including spiders, robots, crawlers, and data mining tools) other than the software or search agents provided by Community Owner or Service Provider;
- 8.5 interfere with security-related features of the Community, including by: (a) disabling or circumventing features that prevent or limit use, printing or

copying of any content; or (b) reverse engineering or otherwise attempting to discover the source code of any portion of the Community except to the extent that the activity is expressly permitted by applicable law;

- 8.6 interfere with the operation of the Community or any user's enjoyment of the Community, including by: (a) uploading or otherwise disseminating any virus, adware, spyware, worm, or other malicious code; (b) making any unsolicited offer or advertisement to another user of the Community; (c) collecting personal information about another user or third party without consent; or (d) interfering with or disrupting any network, equipment, or server connected to or used to provide the Community;
- 8.7 perform any fraudulent activity including impersonating any person or entity, claiming a false affiliation or identity, accessing any other Community account without permission, or falsifying your age or date of birth;
- 8.8 sell or otherwise transfer the access granted under these Terms or any Materials (as defined in Section 4(*Ownership; Proprietary Rights*)) or any right or ability to view, access, or use any Materials; or
- 8.9 attempt to do any of the acts described in this Section 8 (*Prohibited Conduct*) or assist or permit any person in engaging in any of the acts described in this Section 8 (*Prohibited Conduct*).

9. INTELLECTUAL PROPERTY RIGHTS PROTECTION

- 9.1. **Respect of Third Party Rights.** Community Owner respects the intellectual property rights of others, takes the protection of intellectual property rights very seriously, and asks users of the Community to do the same. Infringing activity will not be tolerated on or through the Community.
- 9.2. **DMCA Notification.** We comply with the provisions of the Digital Millennium Copyright Act applicable to Internet service providers (17 U.S.C. § 512, as amended) and the Community is subject to [Service Provider's DMCA policy](#).

10. **Modification of Terms.** We may, from time to time, change these Terms. Please check these Terms periodically for changes. Revisions will be effective immediately except that, for existing users, material revisions will be effective 30 days after posting or notice to you of the revisions unless otherwise stated. We may require that you accept modified Terms in order to continue to use the Community. If you do not agree to the modified Terms, then you should remove your User Content and discontinue your use of the Community. Except as expressly permitted in this Section 10 (Modification of Terms), these Terms may be amended only by a written agreement signed by authorized representatives of the parties to these Terms.

11. TERM, TERMINATION, AND MODIFICATION OF THE COMMUNITY

11.1. **Term.** These Terms are effective beginning when you accept the Terms or first download, install, access, or use the Community, and ending when terminated as described in Section 11.2 (*Termination*).

11.2. **Termination.** If you violate any provision of these Terms, then your authorization to access the Community and these Terms automatically terminate. In addition, Community Owner may, at its sole discretion, terminate these Terms or your account on the Community, or suspend or terminate your access to the Community, at any time for any reason or no reason, with or without notice, and without any liability to you arising from such termination. You may terminate your account and these Terms at any time by using the mechanism designated in the Community or contacting customer service at community@theotherwomanandthewife.com.

11.3. **Effect of Termination.** Upon termination of these Terms: (a) your license rights will terminate and you must immediately cease all use of the Community; (b) you will no longer be authorized to access your account or the Community; (c) you must pay Community Owner any unpaid amount that was due prior to termination; and (d) all payment obligations accrued prior to termination and Sections 3.3 (*Feedback*), 4 (*Ownership; Proprietary Rights*), 11.3 (*Effect of Termination*), 12 (*Indemnity*), 13 (*Disclaimers; No Warranties by Community Owner*), 14 (*Limitation of Liability*), 15 (*Dispute Resolution and Arbitration*), and 16 (*Miscellaneous*) will survive. You are solely

responsible for retaining copies of any User Content you Post to the Community since upon termination of your account, you may lose access rights to any User Content you Posted to the Community. If your account has been terminated for a breach of these Terms, then you are prohibited from creating a new account on the Community using a different name, email address or other forms of account verification.

11.4. Modification of the Community. Community Owner reserves the right to modify or discontinue all or any portion of the Community at any time (including by limiting or discontinuing certain features of the Community), temporarily or permanently, without notice to you. Community Owner will have no liability for any change to the Community, including any paid-for functionalities of the Community, or any suspension or termination of your access to or use of the Community. You should retain copies of any User Content you Post to the Community so that you have permanent copies in the event the Community is modified in such a way that you lose access to User Content you Posted to the Community.

12. Indemnity. To the fullest extent permitted by law, you are responsible for your use of the Community, and you will defend and indemnify Community Owner, its affiliates, and their respective shareholders, directors, managers, members, officers, employees, consultants, and agents (together, the "**Specified Entities**") and Service Provider from and against every claim brought by a third party, and any related liability, damage, loss, and expense, including attorneys' fees and costs, arising out of or connected with: (1) your unauthorized use of, or misuse of, the Community; (2) your violation of any portion of these Terms, any representation, warranty, or agreement referenced in these Terms, or any applicable law or regulation; (3) your violation of any third-party right, including any intellectual property right or publicity, confidentiality, other property, or privacy right; or (4) any dispute or issue between you and any third party. We reserve the right, at our own expense, to assume the exclusive defense and control of any matter otherwise subject to indemnification by you (without limiting your indemnification obligations with respect to that matter), and in that case, you agree to cooperate with our defense of those claims.

13. **DISCLAIMERS; NO WARRANTIES BY COMMUNITY OWNER**

- 13.1. THE COMMUNITY AND ALL MATERIALS AND CONTENT AVAILABLE THROUGH THE COMMUNITY ARE PROVIDED "AS IS" AND ON AN "AS AVAILABLE" BASIS. COMMUNITY OWNER AND SERVICE PROVIDER DISCLAIM ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED, RELATING TO THE COMMUNITY AND ALL MATERIALS AND CONTENT AVAILABLE THROUGH THE COMMUNITY, INCLUDING: (a) ANY IMPLIED WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, QUIET ENJOYMENT, OR NON-INFRINGEMENT; AND (b) ANY WARRANTY ARISING OUT OF COURSE OF DEALING, USAGE, OR TRADE. COMMUNITY OWNER AND ITS SERVICE PROVIDER DO NOT WARRANT THAT THE COMMUNITY OR ANY PORTION OF THE COMMUNITY, OR ANY MATERIALS OR CONTENT OFFERED THROUGH THE COMMUNITY, WILL BE UNINTERRUPTED, SECURE, OR FREE OF ERRORS, VIRUSES, OR OTHER HARMFUL COMPONENTS, AND COMMUNITY OWNER DOES NOT WARRANT THAT ANY OF THOSE ISSUES WILL BE CORRECTED.
- 13.2. NO ADVICE OR INFORMATION, WHETHER ORAL OR WRITTEN, OBTAINED BY YOU FROM THE COMMUNITY, SPECIFIED ENTITIES, OR SERVICE PROVIDER, OR ANY MATERIALS OR CONTENT AVAILABLE THROUGH THE COMMUNITY WILL CREATE ANY WARRANTY REGARDING ANY OF THE SPECIFIED ENTITIES OR THE COMMUNITY THAT IS NOT EXPRESSLY STATED IN THESE TERMS. WE ARE NOT RESPONSIBLE FOR ANY DAMAGE THAT MAY RESULT FROM THE COMMUNITY AND YOUR DEALING WITH ANY OTHER COMMUNITY USER. YOU UNDERSTAND AND AGREE THAT YOU USE ANY PORTION OF THE COMMUNITY AT YOUR OWN DISCRETION AND RISK, AND THAT WE ARE NOT RESPONSIBLE FOR ANY DAMAGE TO YOUR PROPERTY (INCLUDING YOUR COMPUTER SYSTEM OR MOBILE DEVICE USED IN CONNECTION WITH THE COMMUNITY) OR ANY LOSS OF DATA, INCLUDING USER CONTENT.
- 13.3. THE LIMITATIONS, EXCLUSIONS AND DISCLAIMERS IN THIS SECTION 13 (DISCLAIMERS; NO WARRANTIES BY COMMUNITY OWNER) APPLY TO THE FULLEST EXTENT PERMITTED BY LAW. Community Owner does not disclaim any warranty or other right that Community Owner is prohibited

from disclaiming under applicable law.

14. LIMITATION OF LIABILITY

- 14.1. TO THE FULLEST EXTENT PERMITTED BY LAW, IN NO EVENT WILL THE SPECIFIED ENTITIES BE LIABLE TO YOU FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES (INCLUDING DAMAGES FOR LOSS OF PROFITS, GOODWILL, OR ANY OTHER INTANGIBLE LOSS) ARISING OUT OF OR RELATING TO YOUR ACCESS TO OR USE OF, OR YOUR INABILITY TO ACCESS OR USE, THE COMMUNITY OR ANY MATERIALS OR CONTENT ON THE COMMUNITY, WHETHER BASED ON WARRANTY, CONTRACT, TORT (INCLUDING NEGLIGENCE), STATUTE, OR ANY OTHER LEGAL THEORY, AND WHETHER OR NOT ANY SPECIFIED ENTITY OR SERVICE PROVIDER HAS BEEN INFORMED OF THE POSSIBILITY OF DAMAGE.
- 14.2. EXCEPT AS PROVIDED IN SECTIONS 15.5 (*COMMENCING ARBITRATION*) AND 15.7 (*ARBITRATION RELIEF*) AND TO THE FULLEST EXTENT PERMITTED BY LAW, THE AGGREGATE LIABILITY OF THE SPECIFIED ENTITIES TO YOU FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THE USE OF OR ANY INABILITY TO USE ANY PORTION OF THE COMMUNITY OR OTHERWISE UNDER THESE TERMS, WHETHER IN CONTRACT, TORT, OR OTHERWISE, IS LIMITED TO THE GREATER OF: (A) THE AMOUNT YOU HAVE PAID TO COMMUNITY OWNER FOR ACCESS TO AND USE OF THE COMMUNITY IN THE 12 MONTHS PRIOR TO THE EVENT OR CIRCUMSTANCE GIVING RISE TO THE CLAIM AND (B) US\$100.
- 14.3. WITHOUT LIMITING THE FOREGOING, YOU AND COMMUNITY OWNER AGREE THAT SERVICE PROVIDER IS NOT A PARTY TO THIS AGREEMENT AND, TO THE FULLEST EXTENT PERMITTED BY LAW, SERVICE PROVIDER WILL HAVE NO LIABILITY TO YOU ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT. YOU AGREE THAT IF YOU BRING A CLAIM AGAINST SERVICE PROVIDER ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, SUCH CLAIM IS SUBJECT TO THE DISPUTE RESOLUTION PROCEDURE SET FORTH IN SECTION 15, AND SERVICE

PROVIDER WILL BE DEEMED SUBSTITUTED FOR COMMUNITY OWNER THEREUNDER SOLELY FOR THE PURPOSE OF SUCH CLAIM.

- 14.4. EACH PROVISION OF THESE TERMS THAT PROVIDES FOR A LIMITATION OF LIABILITY, DISCLAIMER OF WARRANTIES, OR EXCLUSION OF DAMAGES IS INTENDED TO AND DOES ALLOCATE THE RISKS BETWEEN THE PARTIES UNDER THESE TERMS. THIS ALLOCATION IS AN ESSENTIAL ELEMENT OF THE BASIS OF THE BARGAIN BETWEEN THE PARTIES. EACH OF THESE PROVISIONS IS SEVERABLE AND INDEPENDENT OF ALL OTHER PROVISIONS OF THESE TERMS. THE LIMITATIONS IN THIS SECTION 14 (*LIMITATION OF LIABILITY*) WILL APPLY EVEN IF ANY LIMITED REMEDY FAILS OF ITS ESSENTIAL PURPOSE.

15. DISPUTE RESOLUTION AND ARBITRATION

- 15.1. **Generally.** Except as described in Section 15.2 (Exceptions) and 15.3 (Opt-Out), you and Community Owner agree that every dispute arising in connection with these Terms, the Community, or communications from us will be resolved through binding arbitration. Arbitration uses a neutral arbitrator instead of a judge or jury, is less formal than a court proceeding, may allow for more limited discovery than in court, and is subject to very limited review by courts. This agreement to arbitrate disputes includes all claims whether based in contract, tort, statute, fraud, misrepresentation, or any other legal theory, and regardless of whether a claim arises during or after the termination of these Terms. Any dispute relating to the interpretation, applicability, or enforceability of this binding arbitration agreement will be resolved by the arbitrator.

YOU UNDERSTAND AND AGREE THAT, BY ENTERING INTO THESE TERMS, YOU AND COMMUNITY OWNER ARE EACH WAIVING THE RIGHT TO A TRIAL BY JURY OR TO PARTICIPATE IN A CLASS ACTION.

- 15.2. **Exceptions.** Although we are agreeing to arbitrate most disputes between us, nothing in these Terms will be deemed to waive, preclude, or otherwise limit the right of either party to: (a) bring an individual action in small claims court; (b) pursue an enforcement action through the applicable federal,

state, or local agency if that action is available; (c) seek injunctive relief in a court of law in aid of arbitration; or (d) to file suit in a court of law to address an intellectual property infringement claim.

- 15.3. **Opt-Out.** If you do not wish to resolve disputes by binding arbitration, you may opt out of the provisions of this Section 15 (*Dispute Resolution and Arbitration*) within 30 days after the date that you agree to these Terms by sending a letter to OW, Attention: Legal Department – Arbitration Opt-Out, community@theotherwomanandthewife.com that specifies: your full legal name, the email address associated with your account on the Community, and a statement that you wish to opt out of arbitration ("**Opt-Out Notice**"). Once Community Owner receives your Opt-Out Notice, this Section 15 (*Dispute Resolution and Arbitration*) will be void and any action arising out of these Terms will be resolved as set forth in Section 16.3 (*Governing Law*). The remaining provisions of these Terms will not be affected by your Opt-Out Notice.
- 15.4. **Arbitrator.** This arbitration agreement, and any arbitration between us, is subject to the Federal Arbitration Act and will be administered by the JAMS under the rules applicable to consumer disputes (collectively, "**JAMS Rules**") as modified by these Terms. The JAMS Rules and filing forms are available online at www.jamsadr.com, by calling the JAMS at +1-800-352-5267 or by contacting Community Owner.
- 15.5. **Commencing Arbitration.** Before initiating arbitration, a party must first send a written notice of the dispute to the other party by certified U.S. Mail or by Federal Express (signature required) or, only if that other party has not provided a current physical address, then by electronic mail ("**Notice of Arbitration**"). Community Owner's address for Notice is: OW, community@theotherwomanandthewife.com. The Notice of Arbitration must: (a) identify the name or account number of the party making the claim; (b) describe the nature and basis of the claim or dispute; and (c) set forth the specific relief sought ("**Demand**"). The parties will make good faith efforts to resolve the claim directly, but if the parties do not reach an agreement to do so within 30 days after the Notice of Arbitration is received, you or Community Owner may commence an arbitration proceeding. If you

commence arbitration in accordance with these Terms, Community Owner will reimburse you for your payment of the filing fee, unless your claim is for more than US\$10,000 or if Community Owner has received 25 or more similar demands for arbitration, in which case the payment of any fees will be decided by the JAMS Rules. If the arbitrator finds that either the substance of the claim or the relief sought in the Demand is frivolous or brought for an improper purpose (as measured by the standards set forth in Federal Rule of Civil Procedure 11(b)), then the payment of all fees will be governed by the JAMS Rules and the other party may seek reimbursement for any fees paid to JAMS.

15.6. Arbitration Proceedings. Any arbitration hearing will take place in the county and state of your residence unless we agree otherwise or, if the claim is for US\$10,000 or less (and does not seek injunctive relief), you may choose whether the arbitration will be conducted: (a) solely on the basis of documents submitted to the arbitrator; (b) through a telephonic or video hearing; or (c) by an in-person hearing as established by the JAMS Rules in the county (or parish) of your residence. During the arbitration, the amount of any settlement offer made by you or Community Owner must not be disclosed to the arbitrator until after the arbitrator makes a final decision and award, if any. Regardless of the manner in which the arbitration is conducted, the arbitrator must issue a reasoned written decision sufficient to explain the essential findings and conclusions on which the decision and award, if any, are based.

15.7. Arbitration Relief. Except as provided in Section 15.8 (*No Class Actions*), the arbitrator can award any relief that would be available if the claims had been brought in a court of competent jurisdiction. If the arbitrator awards you an amount higher than the last written settlement amount offered by Community Owner before an arbitrator was selected, Community Owner will pay to you the higher of: (a) the amount awarded by the arbitrator and (b) US\$10,000. The arbitrator's award shall be final and binding on all parties, except (1) for judicial review expressly permitted by law or (2) if the arbitrator's award includes an award of injunctive relief against a party, in which case that party shall have the right to seek judicial review of the

injunctive relief in a court of competent jurisdiction that shall not be bound by the arbitrator's application or conclusions of law. Judgment on the award may be entered in any court having jurisdiction.

15.8. No Class Actions. YOU AND COMMUNITY OWNER AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE PROCEEDING. Further, unless both you and Community Owner agree otherwise, the arbitrator may not consolidate more than one person's claims, and may not otherwise preside over any form of a representative or class proceeding.

15.9. Modifications to this Arbitration Provision. If Community Owner makes any substantive change to this arbitration provision, you may reject the change by sending us written notice within 30 days of the change to Community Owner's address for Notice of Arbitration, in which case your account with Community Owner will be immediately terminated and this arbitration provision, as in effect immediately prior to the changes you rejected will survive.

15.10. Enforceability. If Section 15.8 (*No Class Actions*) or the entirety of this Section 15 (*Dispute Resolution and Arbitration*) is found to be unenforceable, or if Community Owner receives an Opt-Out Notice from you, then the entirety of this Section 15 (*Dispute Resolution and Arbitration*) will be null and void and, in that case, the exclusive jurisdiction and venue described in Section 16.3 (*Governing Law*) will govern any action arising out of or related to these Terms.

16. MISCELLANEOUS

16.1. Third-Party Beneficiary. The Community is powered by a technology platform provided by CircleCo, Inc. ("**Service Provider**"). You and we acknowledge and agree that (a) Service Provider is an intended third-party beneficiary to these Terms, (b) is entitled to rights and benefits hereunder, and (c) may enforce these Terms against you as if it were an original party hereto.

- 16.2. **General Terms.** These Terms, including the Privacy Policy and any other agreements expressly incorporated by reference into these Terms, are the entire and exclusive understanding and agreement between you and Community Owner regarding your use of the Community. These Terms or any rights under these Terms, may not be assigned either by us or by you in whole or in part, by operation of law or otherwise, without our Service Provider's prior written consent. The failure to require performance of any provision will not affect our right to require performance at any other time after that, nor will a waiver by us of any breach or default of these Terms, or any provision of these Terms, be a waiver of any subsequent breach or default or a waiver of the provision itself. Use of Section headers in these Terms is for convenience only and will not have any impact on the interpretation of any provision. Throughout these Terms the use of the word "including" means "including but not limited to." If any part of these Terms is held to be invalid or unenforceable, then the unenforceable part will be given effect to the greatest extent possible, and the remaining parts will remain in full force and effect.
- 16.3. **Governing Law.** These Terms are governed by the laws of the State of New York without regard to conflict of law principles. You and Community Owner submit to the personal and exclusive jurisdiction of the state courts and federal courts located within Kings County, New York for resolution of any lawsuit or court proceeding permitted under these Terms. Service Provider operates the service that we use to provide the Community from its offices in New York, and we make no representation that Materials included in the Community are appropriate or available for use in other locations.
- 16.4. **Privacy Policy.** You understand and agree to the processing of your personal data in connection with the Community in accordance with [Community Owner's Privacy Policy](#), which is hereby incorporated by reference into Section 16.4 of these Terms.
- 16.5. **Consent to Electronic Communications.** By using the Community, you consent to receiving certain electronic communications from us as further described in our Privacy Policy. Please read our Privacy Policy to learn more

about our electronic communications practices. You agree that any notices, agreements, disclosures, or other communications that we send to you electronically will satisfy any legal communication requirements, including that those communications be in writing.

- 16.6. **Notice to California Residents.** If you are a California resident, then under California Civil Code Section 1789.3, you may contact the Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs in writing at 1625 N. Market Blvd., Suite N 112, Sacramento, California 95834, or by telephone at +1-800-952-5210 in order to resolve a complaint regarding the Community or to receive further information regarding use of the Community.

17. **Notice Regarding Apple.** This Section 17 (*Notice Regarding Apple*) only applies to the extent you are using our mobile application on an iOS device. You acknowledge that these Terms are between you and Community Owner only, not with Apple Inc. ("**Apple**"), and Apple is not responsible for the Community or the content of it. Apple has no obligation to furnish any maintenance and support services with respect to the Community. If the Community fails to conform to any applicable warranty, you may notify Apple, and Apple will refund any applicable purchase price for the mobile application to you. To the maximum extent permitted by applicable law, Apple has no other warranty obligation with respect to the Community. Apple is not responsible for addressing any claims by you or any third party relating to the Community or your possession and/or use of the Community, including: (1) product liability claims; (2) any claim that the Community fails to conform to any applicable legal or regulatory requirement; or (3) claims arising under consumer protection or similar legislation. Apple is not responsible for the investigation, defense, settlement, and discharge of any third-party claim that the Community and/or your possession and use of the Community infringe a third party's intellectual property rights. You agree to comply with any applicable third-party terms when using the Community. Apple and Apple's subsidiaries are third-party beneficiaries of these Terms, and upon your acceptance of these Terms, Apple will have the right (and will be deemed to have accepted the right) to enforce these Terms against you as a third-party beneficiary of these Terms. You hereby represent and warrant that: (a) you are not located in a country that is subject to a U.S. Government embargo or that has been designated by the U.S. Government as a "terrorist supporting" country; and (b) you are not listed on any U.S. Government list of prohibited or restricted parties.